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# CORPORATE-STRUCTURE

GOEMON GLOBAL FINANCE · CONFIDENTIAL — FOUNDER · JUNE 29, 2026

Strategic guidance only — not legal, financial, tax, or investment advice.  
Securities, money-transmission, and corporate-formation decisions must be reviewed by licensed counsel and a CPA before you act. Sections flagged “ see counsel” are where this matters most.

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# Corporate Structure & Compliance Strategy

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A lean-now, licensed-later blueprint for incorporating Goemon Global Finance as a US tokenization-first fintech — the least-compliance entry that still scales cleanly into a fully licensed money business.

**How to read this.** Every section is tagged **DO NOW**, **DEFER → Phase B/C**, or **see counsel**.

Dollar and time figures are planning estimates (2025–2026 US), not quotes. This is strategy, not legal advice — the regulated decisions must be run past a fintech attorney and a CPA before you file or launch.

✓ **Structure confirmed (2026-07-14):** a Wyoming-licensed attorney and a CPA have confirmed the core ownership design this doc describes — the two-member LLC (Chad 51% / Oran 40% / 9% pool), the partnership tax election, the IP-as-capital-contribution treatment, and the estate-planning design. Downstream licensing/regulated decisions (Phase B/C) remain **see counsel** as tagged.

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## 1 1. Executive summary & the core legal thesis

**The thesis:** the cheapest legal way into fintech is to *not be a money business yet*. Goemon Global Finance's locked architecture already supports this — keys live in the user's Secure Enclave, the server never holds a private key, and tokenization is delivered as **software**. If you never take custody of customer funds and never act as the intermediary that moves value, you stay outside the two most expensive US regimes (money-transmitter licensing and broker-dealer registration) for as long as possible.

So the strategy is a **three-phase compliance ramp**, with the corporate structure built on day one to absorb each phase without re-papering the company:

| Phase                | What you are                                                                                                          | Licensing burden                                                                          | Trigger to advance                             |
|----------------------|-----------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|------------------------------------------------|
| <b>A — Launch</b>    | Software + non-custodial wallet + tokenization infrastructure                                                         | Minimal: entity, AML <i>policy</i> , terms, IP. <b>No MTL.</b>                            | Live product, first users                      |
| <b>B — Partnered</b> | Same, plus regulated <b>partners</b> (BaaS bank, custodian, transfer agent, KYC vendor) move the money/assets for you | FinCEN MSB registration likely; partner due-diligence                                     | You need fiat in/out or pooled custody         |
| <b>C — Licensed</b>  | You hold your own licenses / charter                                                                                  | State MTLs (or bank partnership), transfer-agent registration, possibly broker-dealer/ATS | Scale, unit economics justify owning the rails |

**The single most important rule:** the moment you touch customer fiat or hold their crypto for them, you are probably a money transmitter in most states. Phase A is engineered to never do that.

#### Recommendation at a glance:

- **Form a Wyoming LLC now** ( [Goemon Global Finance, LLC](#) ) — the lowest-cost, lowest-admin, most private US entity, with pass-through taxation and crypto-friendly statutes. **Convert to a Delaware C-corp later**, when you raise institutional capital or stand up the regulated subsidiary (Phase B/C).
- **The agreed ownership is two founding members: Chad Cromwell — 51%** (Manager + CEO) and **Oran Cromwell — 40%** (father/son), with a **9% incentive pool** reserved for future team/advisors. The LLC is **manager-managed** (Chad) and taxed as a **partnership** (Form 1065; a K-1 to each member). This is the design the executed founding docs in [docs/legal/](#) (Operating Agreement, Initial Resolutions, Equity Incentive Plan, Articles/BOI) implement — see §4.
- **Adopt a real operating agreement** — it's the document partner banks, vendors, and a future conversion all lean on, and it's where the 51/40/9 split and Chad-as-manager control are recorded (the public Articles do not state ownership).
- **Assign the IP** (the code already in this repo) from you personally to the company immediately — the single cheapest-now / expensive-later action in this plan.
- **Do not market the product as a "bank" or "banking."** That word is regulated; using it can draw a cease-and-desist before you have a single user. (Yes, this affects the product name — see §9.)

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## 2 Entity structure — start as a lean Wyoming LLC, convert into a holdco

### 2.1 What to form now (DO NOW)

A two-member Wyoming LLC, [Goemon Global Finance, LLC](#) — Chad Cromwell (51%, Manager + CEO) and Oran Cromwell (40%), plus a 9% incentive pool reserved for future team/advisors — **manager-managed** by Chad. It is the cheapest, most private US entity for a lean start, and a multi-member LLC keeps a clean co-founder structure without the cost and double-taxation of a C-corp. A multi-member LLC is taxed as a **partnership for federal tax** (Form 1065; a Schedule K-1 to each member) — still **pass-through** (no entity-level corporate tax), just filed at the entity level rather than on a single personal return.

Why the Wyoming LLC for a lean start:

- **Minimal cost & admin.** ~\$100–150 to form, ~\$60/yr to maintain, no state income tax.
- **Pass-through taxation.** No double tax; income and (subject to rules) losses flow through to the members' returns via K-1. A partnership return (1065) is more than a solo Schedule C but far lighter than a C-corp.
- **Privacy.** Wyoming doesn't publicly list LLC members — ownership lives in the operating agreement, not the public Articles.
- **Crypto-forward law.** Wyoming pioneered digital-asset statutes, the DAO LLC, and the SPDI charter.
- **Liability shield** for the members' personal assets — as long as you respect the formalities (separate bank account, operating agreement, no commingling).

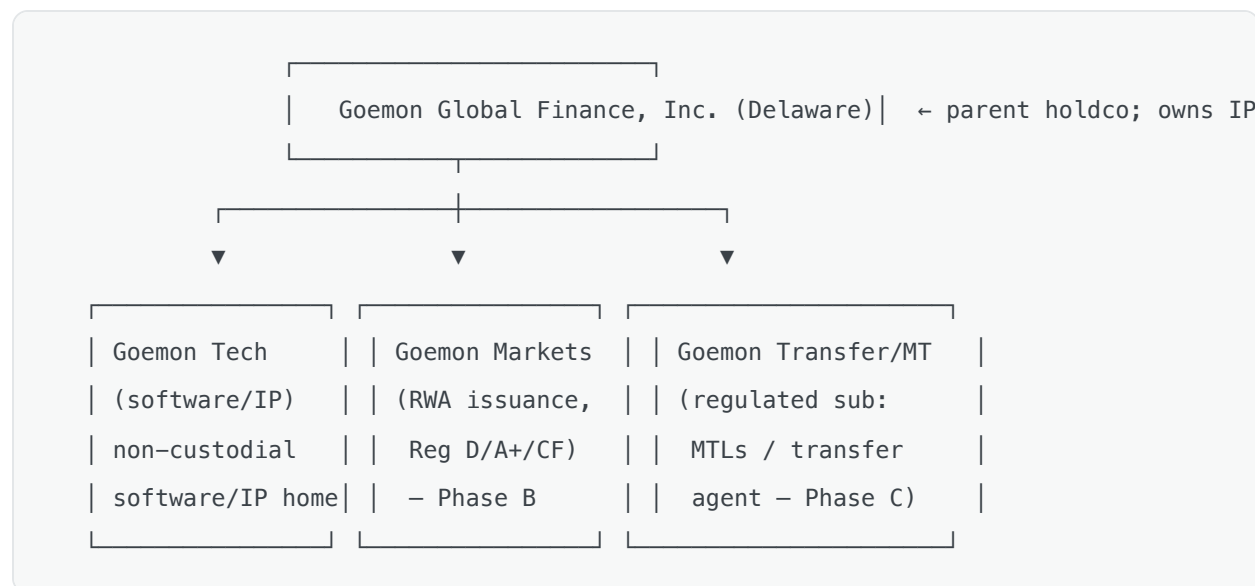
The honest tradeoffs vs. a C-corp — and why they don't bite yet:

- **No QSBS.** The §1202 gain exclusion needs a C-corp. You forgo it *until you convert* — acceptable while pre-revenue and pre-raise.
- **Equity comp uses profits interests.** As a multi-member LLC you grant team/advisors **profits interests** (a share of *future* upside above a hurdle) from the 9% pool rather than clean ISOs/NSOs — tax-efficient if papered correctly (Rev. Procs. 93-27 / 2001-43), and it converts to a normal option pool at the C-corp step.
- **Investors require conversion.** Institutional money wants a Delaware C-corp; **LLC → C-corp conversion** later is a real, lawyer-assisted step (often structured tax-neutrally) costing ~\$3–8k, at which point the members' units become founder stock and profits interests become the option pool.

So: the WY LLC is the right lean Phase-A vehicle. Treat the **conversion to a Delaware C-corp** as a planned future event tied to your first institutional raise or your first regulated subsidiary — not something to pay for now.

## 2.2 Where this is going (DEFER → Phase B/C): convert, then split into a holdco

When you raise capital or introduce regulated activity, **convert the LLC to a Delaware C-corp** (statutory conversion, or an F-reorg/Up-C as counsel advises) and adopt a holdco + opco structure so a license never contaminates your software IP:



*(Until you convert, "Goemon Global Finance, LLC" simply **is** the software/IP entity — the boxes below collapse into the single LLC. The split appears only at conversion.)*

The reason: licenses, bonds, regulatory exams, and money-movement liability sit in the regulated subsidiary. If that entity ever has a problem, your core technology and IP — the valuable asset — are insulated in a separate box owned by the parent. You **don't pay for this complexity until the revenue or the regulator forces it.** ☞ see counsel when you spin up the first subsidiary.

## 2.3 The alternative (if you'd rather optimize for fundability now)

If raising institutional money or pursuing licensing *soon* is likely, you can **skip straight to a Delaware C-corp** and avoid a later conversion — at the cost of higher run-rate, double taxation, and more admin than a bootstrapper needs in Phase A. For Goemon Global Finance's lean, pre-revenue start, the **Wyoming LLC is the recommended default**, converting when the money or the regulator makes the C-corp worth it.

|                            | Wyoming LLC<br><i>(recommended now)</i> | Delaware C-corp           | Offshore token entity    |
|----------------------------|-----------------------------------------|---------------------------|--------------------------|
| Setup cost                 | ~\$100–500                              | ~\$500–1,500 (DIY–lawyer) | \$\$\$ + ongoing         |
| Annual cost                | ~\$60–150                               | ~\$400–900                | high                     |
| Taxation                   | Pass-through (simplest)                 | Double (corp + dividends) | Complex (CFC/PFIC)       |
| Stock/options              | Units / profits interests               | Native, clean             | n/a                      |
| QSBS                       | ✗ (gained on conversion)                | ✓                         | ✗                        |
| Fundraising-ready          | Convert first                           | ✓ best                    | Complicates US raise     |
| Regulator/bank credibility | Good                                    | ✓ high                    | Scrutiny / de-risking    |
| Best for                   | <b>Your lean Phase-A start</b>          | Imminent raise/licensing  | Not recommended US-first |

### 3. Where to incorporate

Wyoming for the LLC now. Delaware when you convert. Wyoming again on the radar for a future charter.

- **Wyoming (now)** — the LLC home: no state income tax, member privacy, low fees, and the most crypto-forward statutes in the US (digital-asset law, the **DAO LLC**, and the **Special Purpose Depository Institution (SPDI)** charter — a long-term option for a crypto-native, custody-capable "bank-like" entity without FDIC deposit-taking). You'll **foreign-qualify** in your home state (where you actually work) and pay that state's fees too — budget for both. If you live in a high-tax/high-fee state (e.g., CA), confirm whether you must *also* register the LLC there. ⚖️
- **Delaware (on conversion)** — when you raise or issue equity, convert to a **Delaware C-corp**: predictable corporate law (Court of Chancery), a playbook every investor/bank/lawyer knows, and clean stock mechanics. This is the planned Phase-B/C move, not a day-one cost.
- **Offshore (Cayman/BVI/CH/UAE)** — common for token *issuance* in pure-crypto projects, but for a **US-first, US-user** product it adds tax complexity (CFC/PFIC rules), banking

friction, and regulator suspicion. **Not recommended** for your launch. Revisit only if a token-generation event for a protocol token (not the product) is ever on the table. ☞ see counsel.

**Decision:** form `Goemon Global Finance, LLC` in Wyoming now; foreign-qualify where you live; plan the **Delaware C-corp conversion** for your first raise/regulated subsidiary; keep the **Wyoming SPDI** as the deep Phase-C charter option.

#### 4 4. Founding ownership & equity structure (LLC units)

Membership interests are **membership units** governed by the **operating agreement** — no stock, no authorized-share count, no Delaware franchise tax to engineer. The Company authorizes **10,000,000 units**, all Class A Voting, split between the two founding members with a reserved incentive pool.

Agreed ownership (as implemented in `docs/legal/OPERATING-AGREEMENT.md` + `INITIAL-RESOLUTIONS.md`):

| Member / reserve                                                  | Units      | Interest   | Class / vote   |
|-------------------------------------------------------------------|------------|------------|----------------|
| <b>Chad Cromwell</b> — Manager + CEO + Partnership Representative | 5,100,000  | <b>51%</b> | Class A Voting |
| <b>Oran Cromwell</b> (father/son)                                 | 4,000,000  | <b>40%</b> | Class A Voting |
| <b>Equity Incentive Plan pool</b> — <i>reserved, unissued</i>     | 900,000    | <b>9%</b>  | per award      |
| <b>Total authorized</b>                                           | 10,000,000 | 100%       |                |

Both founders' units are **fully vested** on the effective date. The 9% pool is reserved (not outstanding, no vote, no allocations) until issued as **profits-interest** awards under the Plan. (Governance percentages are computed on issued/outstanding units; see the OA §2.2 and `INITIAL-RESOLUTIONS.md`). The father/son ownership is a deliberate design — confirm the estate/gift implications with counsel + CPA. ☞)



| Item                 | Recommendation                                                                                      | Why                                                                                             |
|----------------------|-----------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Ownership            | <b>Chad 51% / Oran 40% / 9% pool</b>                                                                | Clean co-founder split; Chad holds majority control + manages                                   |
| Units                | <b>10,000,000 units</b> authorized (5.1M / 4.0M issued; 0.9M reserved)                              | Clean for future grants + the C-corp conversion                                                 |
| Capital contribution | Each member contributes cash (e.g., \$500–1,000); <b>Chad also contributes the assigned IP</b>      | Establishes basis + the LLC's capital (§704(c) on the contributed IP — <a href="#">see</a> CPA) |
| Tax election         | Default <b>partnership</b> (multi-member); <b>revisit S-corp election</b> only if profits get large | Don't over-optimize taxes pre-revenue                                                           |

**Operating agreement** — your most important governance document. **DO NOW.** It defines ownership (the 51/40/9 split), management (**Chad as manager**), capital, unanimous-consent Reserved Matters, transfer restrictions, the two-member **deadlock/buy-sell** backstop, and how **profits interests** get admitted from the pool. Banks and a future conversion both rely on it, and it reinforces the liability shield (an LLC without one is easier to "pierce").

**Incentive equity for future hires/advisors** — **profits interests**. When you bring people on, an LLC grants **profits interests** (a share of *future* upside, not existing value) rather than stock options. They're tax-efficient if papered correctly — and the moment they get complex is exactly the moment to do the **Delaware C-corp conversion** (§2.2) and switch to a normal option pool.

**The 83(b) nuance for an LLC.** [see](#) **note**. The founders' units are issued **fully vested and outright**, so the classic founder-stock 83(b) urgency doesn't apply to Chad's or Oran's initial units. But 83(b) *does* matter for the pool: every **profits-interest** award (and any later unit subject to vesting) should file a protective **83(b) election within 30 days** of that grant. Keep the 30-day rule on the radar for every Plan award — it's unfixable if missed.

**SAFE-ready / raise posture.** You can technically raise into an LLC, but most investors want a Delaware C-corp and a SAFE. So the plan is: stay lean as the LLC; **convert to a DE C-corp the moment a real raise is on the table**, then raise on a standard **SAFE** (the YC standard). Don't contort the LLC to look like a startup it isn't yet.

**Tooling:** a cap-table tool is overkill for a closely-held two-member LLC — the operating agreement's Schedule A plus a folder of signed docs is the cap table now. Adopt **Carta/Pulley** at conversion, when options and investors arrive.

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## 5 5. Governance, founding documents & the IP assignment

Every LLC needs the real paper — skipping it weakens the liability shield and creates problems exactly when you can least afford them (a raise, a partner-bank diligence, an acquisition). With two members it also fixes the split, the manager's authority, and the deadlock/buy-sell rules before they're ever tested.

**The document set (DO NOW):**

- **Articles of Organization** (filed with Wyoming) — the LLC's name and registered agent (ownership stays off the public filing).
- **Operating Agreement** — the 51/40/9 ownership, **Chad as manager**, capital, Reserved Matters, transfer restrictions, and the rules for admitting profits interests from the pool (§4). The cornerstone document.
- **Initial Member/Manager Resolutions** — issue the founders' units, appoint Chad Manager+CEO, adopt the partnership tax classification, authorize the bank account + the IP contribution ( `INITIAL-RESOLUTIONS.md` ).
- **EIN** from the IRS (free; needed for the bank account — a multi-member LLC files Form 1065 under its EIN).
- **IP / Invention Assignment** — **Chad** signs one assigning his work to the LLC as a capital contribution; every contributor signs one too (see below).

**The IP assignment — do this immediately. ⚡ DO NOW.** Right now, *you personally* wrote the code sitting in this repository — which means **you**, not the company, may own it. Before any value accrues, execute a **Technology/IP Assignment Agreement** transferring all of it (code, designs, the Goemon Global Finance marks, domains, the architecture docs) to `Goemon Global Finance, LLC`. This is the #1 thing acquirers and investors diligence, it survives the future C-corp conversion intact, and it's trivially cheap to fix today and expensive to fix later. Make sure any contractor or contributor (now or ever) signs an assignment too — work-for-hire alone is not enough for IP.

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## 6 6. The phased compliance roadmap (*the heart of this document*)

### Phase A — Launch as non-custodial software (DO NOW)

Goal: deliver real product value while staying outside money-transmitter and broker-dealer scope.

What keeps you out of scope:

- **Non-custodial by architecture.** Keys are generated and held in the user's Secure Enclave; the server never holds a user's private key (a *locked* architecture decision in this repo). You are not holding customer funds, so you are generally not a money transmitter under FinCEN's framework for non-custodial wallet software.
- **Tokenization framed as software.** You build the rails; you are not the issuer of record taking in investor money. The repo's demo securities are explicitly labeled "not a real offering" — keep that posture until an entity is set up to issue properly (Phase B).
- **Partner out everything that touches money.** No fiat on/off-ramp run by you. If users need to buy crypto, route them to a licensed third party (e.g., an embedded on-ramp like MoonPay/Stripe Crypto/Coinbase) under *their* license, not yours.

**What you CAN do in Phase A:** non-custodial wallet, DID/VC identity, tokenized-asset viewing and *peer-to-peer* transfers the user signs themselves, the AI agent/MCP experience operating under user-granted, user-signed authorizations (already built), and a marketplace UI that *links to* but does not *operate* the trade as principal.

**What you CANNOT do in Phase A:** hold customer USD or crypto, run an exchange/order book as intermediary, issue and sell securities to the public, or move money between users as the middleman.

**The securities reality of tokenized RWAs.** ⚠ see counsel — this is the sharpest edge. A tokenized building, fund, or business interest is almost certainly a **security**. Selling it in the US requires either registration or an exemption:

| Exemption              | Who can invest             | Raise cap | Marketing              | Fit for Goemon Global Finance                   |
|------------------------|----------------------------|-----------|------------------------|-------------------------------------------------|
| <b>Reg D 506(c)</b>    | Accredited only (verified) | Unlimited | Public solicitation OK | Best early path; pair with accreditation checks |
| <b>Reg A+ (Tier 2)</b> | Anyone                     | \$75M/yr  | Public                 | Costly "mini-IPO"; later phase                  |
| <b>Reg CF</b>          | Anyone                     | \$5M/yr   | Via funding portal     | Needs a registered portal partner               |

Your repo already models the compliance gating (tier/jurisdiction/holder-cap, the Compliance Module), which maps cleanly onto Reg D accreditation + holder caps — but the *legal* offering wrapper must be built with a securities attorney before you sell anything real.

#### Phase A compliance you DO still need (cheap, do it now):

- A written **AML/KYC policy** and a named compliance officer (you), even pre-license — it's table stakes for partner diligence and good hygiene. The repo's identity ladder + VC issuance + append-only audit log are most of the technical substrate.
- **OFAC/sanctions screening** at onboarding (screen every user against SDN lists).
- **Terms of Service, Privacy Policy, E-Sign consent, risk disclosures.**

#### Phase B — Partnered (DEFER → when you need fiat or pooled custody)

When users need to move real dollars or you need to custody pooled assets, plug in regulated partners rather than becoming regulated yourself:

- **BaaS / partner bank** (e.g., Column, Lead Bank, Unit/Treasury Prime as middleware) — for FBO accounts, ACH, debit, fiat rails. *They* hold the banking license; you ride it.
- **Qualified custodian** for crypto/RWA custody (e.g., Anchorage, BitGo, Fireblocks-backed).
- **Transfer agent** for tokenized securities cap-table-of-record.
- **KYC/AML vendor** (Persona, Alloy, Footprint) to industrialize identity + sanctions + ongoing monitoring.

**Trigger:** the first time money or pooled custody flows through *you*, you very likely must register as a **FinCEN Money Services Business (MSB)** (a federal registration, ~free, biennial) and your written AML program becomes mandatory, not optional. ☞ see counsel on the exact trigger.

## Phase C — Licensed (DEFER → when scale justifies owning the rails)

The expensive, defensible end state, pursued only when unit economics justify it:

- **State Money Transmitter Licenses (MTLs)** — the big one. ~\$50–150k+ to get a meaningful US footprint, surety bonds per state, minimum net worth, multi-year timeline. Most fintechs **partner instead** (Phase B) for years; only bring MTLs in-house when margin demands it.
  - **Broker-dealer / ATS** — if you want to operate secondary trading of tokenized securities as principal/venue, you need a registered broker-dealer and likely an **ATS** (Alternative Trading System). Realistically a partnership (e.g., with a licensed BD/ATS) long before you own one.
  - **Transfer-agent registration** — SEC Form TA-1 if you become the official record-keeper for securities holders.
  - **Wyoming SPDI charter** — the long-horizon "crypto bank" option for custody at scale.
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## 7. Corporate bank account & money movement

**DO NOW:** open a corporate account at a **fintech-friendly bank** once you have the EIN + formation docs:

- **Mercury** — the startup default; good API, treasury, crypto-tolerant. Strong first choice.
- **Brex** — cards + spend management; good if you want corporate cards early.
- **Column / regional banks** — relevant later as actual banking *partners* (Phase B), distinct from your operating account.

What they'll ask for: EIN, Articles of Organization + operating agreement, your ID, beneficial-ownership info, and a description of the business. **Be precise and honest** that you're building crypto/tokenization software — vague or evasive answers get accounts frozen ("de-risked"). A clean "non-custodial software, no customer funds in Phase A" story is bankable; "we move customer crypto" without licenses is not.

**The commingling rule (non-negotiable):** the moment any customer-adjacent funds exist, they live in **separate FBO/escrow accounts**, never your operating account. Commingling customer money with corporate money is how fintechs get shut down and founders get personal liability. In Phase A you avoid this entirely by not holding customer funds.

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## 8. KYC/AML & BSA program (even before you're licensed)

Build the program early — it's cheap as policy, expensive as a retrofit, and every partner bank will demand to see it.

| Element                              | What it is                                                            | Repo substrate that maps to it                                                             |
|--------------------------------------|-----------------------------------------------------------------------|--------------------------------------------------------------------------------------------|
| <b>Written AML/BSA policy</b>        | Your documented program                                               | — (author it; ~\$2–5k with counsel or a template)                                          |
| <b>Designated compliance officer</b> | A named human (you, initially)                                        | —                                                                                          |
| <b>CIP / KYC</b>                     | Verify identity at onboarding                                         | Tiered identity ladder, DID/VC issuance, risk-adaptive onboarding                          |
| <b>Sanctions/OFAC screening</b>      | Screen against SDN/blocklists                                         | Onboarding signal scoring hook                                                             |
| <b>Transaction monitoring</b>        | Flag suspicious patterns                                              | The ledger + orchestration engine (basis for the fraud system in the tech plan)            |
| <b>SAR/CTR readiness</b>             | File Suspicious Activity / Currency Transaction Reports when required | Append-only <code>audit_logs</code> / <code>mcp_audit_logs</code> give the immutable trail |
| <b>Recordkeeping</b>                 | Retain records 5 yrs                                                  | Append-only ledger + audit logs                                                            |

The point: your existing technical primitives (append-only audit, identity ladder, VC, signal scoring) are already ~70% of a credible AML program's *evidence layer*. What's missing is the **written policy + named officer + screening vendor**, which is mostly paperwork and a tool.

## 9. What you're missing — the founder checklist

| #  | Item                                                                 | Priority      | Notes                                                                                                                                                                                                                                                                                 |
|----|----------------------------------------------------------------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1  | <b>EIN</b>                                                           | DO NOW        | Free from IRS; gates the bank account                                                                                                                                                                                                                                                 |
| 2  | <b>Registered agent</b> in Wyoming                                   | DO NOW        | ~\$50–125/yr (Wyoming Agents, Northwest, etc.)                                                                                                                                                                                                                                        |
| 3  | <b>Foreign qualification</b> in your home state                      | DO NOW        | Where you actually operate; confirm if a high-fee state requires LLC registration too                                                                                                                                                                                                 |
| 4  | ⚠ <b>"Bank" naming risk</b>                                          | DO NOW        | "Bank"/"banking" are <b>regulated terms</b> ; using them without a charter invites cease-and-desist. Consider a market-facing brand that avoids implying you <i>are</i> a bank ("Goemon Global Finance" the company is fine; marketing copy saying "your bank" is not). ⚖ see counsel |
| 5  | <b>Trademark</b> the brand                                           | Soon          | USPTO search + file; the name/marks should be company-owned (via §5 IP assignment)                                                                                                                                                                                                    |
| 6  | <b>Terms of Service / Privacy Policy / E-Sign / risk disclosures</b> | DO NOW        | Before any user signs up                                                                                                                                                                                                                                                              |
| 7  | <b>Data protection: GLBA + state privacy (CCPA/CPRA etc.)</b>        | DO NOW        | Fintech data is sensitive; GLBA safeguards apply once you're financial                                                                                                                                                                                                                |
| 8  | <b>Cyber + tech E&amp;O insurance</b>                                | Phase B       | Partners will require it; also basic prudence                                                                                                                                                                                                                                         |
| 9  | <b>Cap-table tool</b> (Carta/Pulley)                                 | At conversion | Overkill for a closely-held two-member LLC (Schedule A is the cap table); adopt when options/investors arrive                                                                                                                                                                         |
| 10 | <b>Accounting + R&amp;D tax credits</b>                              | Soon          | A startup CPA; the federal R&D credit can offset payroll tax — real money for a dev-heavy build                                                                                                                                                                                       |
| 11 | <b>Beneficial Ownership (BOI)</b> reporting                          | Check status  | FinCEN BOI rules have shifted; confirm current applicability ⚖                                                                                                                                                                                                                        |

| #  | Item                                       | Priority | Notes                                                 |
|----|--------------------------------------------|----------|-------------------------------------------------------|
| 12 | <b>Business insurance / D&amp;O</b>        | Phase B  | Especially before taking on any investor              |
| 13 | <b>"Not advice" disclaimers</b> in-product | DO NOW   | Especially around tokenized-asset/investment surfaces |
|    |                                            |          |                                                       |
|    |                                            |          |                                                       |

## 10 10. 90-day action checklist (ordered)

Days 1–14 — exist as a company

1. Pick the exact legal name; clear it (Wyoming name check + USPTO knockout search).
2. File the **Wyoming LLC** (Articles of Organization); appoint a registered agent.
3. Get the EIN.
4. Adopt the **operating agreement** (Chad as manager; Chad 51% / Oran 40% / 9% pool) and the **initial resolutions**; each member makes their **capital contribution**.
5. Execute the **IP/Technology Assignment** (repo → **Goemon Global Finance, LLC**); Chad contributes the IP and every contributor signs an invention assignment.
6. *(The founders' units are issued fully vested, so no founder 83(b) is triggered. But file a protective 83(b) within 30 days of any profits-interest grant from the 9% pool — unfixable if missed.)*

**Days 15–45 — be operational & bankable** 7. Open the **Mercury** (or **Brex**) business account. 8. Foreign-qualify in your home state. 9. Engage a **startup CPA** and (for the regulated questions) a **fintech/securities attorney** — even a few scoped hours now prevents expensive mistakes.

**Days 46–90 — compliance & launch posture** 11. Draft **ToS / Privacy / E-Sign / risk disclosures**; publish before onboarding users. 12. Write the **AML/KYC policy**; name yourself compliance officer; wire in **OFAC screening**. 13. Lock the **Phase-A product scope** to non-custodial / no-customer-funds; document *why* each feature stays in scope (this doc + counsel sign-off is your defense). 14. File the **trademark**; finalize the market-facing brand that avoids the "bank" trap. 15. Decide the **Phase-B trigger** in writing (what user need forces partners + MSB registration) so you advance deliberately, not by accident.



## Appendix — rough first-year cost envelope (bootstrap)

| Line                                                             | Estimate                                                  |
|------------------------------------------------------------------|-----------------------------------------------------------|
| Wyoming LLC formation (DIY-assisted)                             | \$100–500                                                 |
| Registered agent                                                 | \$50–125/yr                                               |
| Wyoming annual report / license tax                              | ~\$60–100/yr                                              |
| Home-state foreign qualification                                 | \$100–400                                                 |
| Operating agreement (template + review)                          | \$0–1.5k                                                  |
| Legal (scoped: formation review, IP, AML policy, securities Q&A) | \$3–10k                                                   |
| Startup CPA (setup + first year)                                 | \$1–3k                                                    |
| ToS/Privacy (templated + reviewed)                               | \$0.5–3k                                                  |
| <b>Total realistic Year-1</b>                                    | <b>~\$5–18k</b> (LLC keeps the floor lower than a C-corp) |

Compare that to Phase-C licensing (\$50–150k+ for MTLs alone) and the logic of the lean ramp is obvious: **spend thousands to launch, defer the hundreds-of-thousands until revenue earns it.**

Operative legal set: `docs/legal/` — `OPERATING-AGREEMENT.md` (cornerstone), `INITIAL-RESOLUTIONS.md`, `EQUITY-INCENTIVE-PLAN.md`, and `FORMATION-articles-of-organization.md`. These implement the **two-member Chad 51% / Oran 40% / 9% pool** design described above and are the authoritative record of ownership, management, and the pool.

Superseded alternative: `GO-LIVE-PLAN.md` proposed a different ownership design — an anonymous, child-owned Wyoming IP HoldCo plus a separate founder-owned management company. **That design was not adopted** (the two-member LLC above was), and `GO-LIVE-PLAN.md` is retained only for its reasoning + guerrilla-marketing plan.

Next document: the Production Deployment & Technology Strategy — cloud, the agent/MCP/skills automation fabric, the Neo4j Identity Vault, the fraud system on your orchestration engine, Constellation digital evidence, iOS-vs-Android, and GTM.